Brazoria County District Court

Cause No. 2025-CV-0011

Scott Johnson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	February 2, 2025
Plaintiff's counsel:	Stacy Jones, Morris & Miller LLP

PARTIES

Plaintiff Scott Johnson is an individual residing in Texas who was injured in a motor vehicle collision in Sugar Land. Defendant is an automobile insurance company authorized to transact insurance business in the State of Texas, which issued a policy of automobile liability and uninsured/underinsured motorist coverage to Plaintiff. Defendant may be served through its registered agent for service of process.

FACTS

On February 26, 2024, Plaintiff was lawfully parked in a marked space in a retail parking lot in Sugar Land when a vehicle operated by an insured driver backed into Plaintiff's vehicle with considerable force. The collision was reported to Defendant promptly, and Plaintiff provided a recorded statement and supporting documentation. Defendant accepted coverage for the claim but has not offered a fair settlement reflecting the medical treatment and losses Plaintiff sustained.

NEGLIGENCE

The insured driver owed a duty to exercise ordinary care when operating and backing a motor vehicle, including keeping a proper lookout and yielding to vehicles and persons lawfully present in the lot. The insured driver breached that duty by backing without adequate observation and striking Plaintiff's vehicle. Defendant, as the insurer obligated under the policy to pay on behalf of its insured, is liable for the resulting damages to the extent provided by the policy and Texas law, and has further failed to act in good faith in evaluating and resolving the claim.

DAMAGES

As a direct result of the collision, Plaintiff suffered a lubmar back strain requiring medical examination, imaging, physical therapy, and ongoing restrictions on work and daily activities. Plaintiff has incurred past medical expenses, lost wages, pain and suffering, mental anguish, and loss of enjoyment of life, and will likely incur future medical care. Plaintiff seeks actual damages in the amount of $189,000.00, together with pre-judgment and post-judgment interest, court costs, and all other relief to which Plaintiff may be entitled.